

Sole Source (Including Brand Name) Justification - Simplified Procedures for Certain Commercial Items

NOTE: If a Justification was approved for the preceding acquisition, a copy of the approved Justification for the predecessor action must be included in the staff package for approval of the instant Justification. This applies to Justification staff packages that are submitted for review and approval at a level above the contracting officer. The predecessor Justification will be used as a reference document by the approving official.

Is this a new or amended J&A Document? ☒ New ☐ Amended (Prior to Award Only!)

Is this a Bridge Action as defined in the [AF Bridge Action Reduction Plan](#)? ☐ Yes ☒ No

Funding level for this acquisition: ☒ >SAT and ≤ \$750K ☐ > \$750K and ≤ \$15M

Contracting Activity: AFMC AFTC/PZIOA

Purchase Request / Local ID Number: F1TBAP5057A001

Program / Project (and PE, if applicable): Maintenance and Repair of the NX9000 system

Program Type (PEO or Other Contracting): Other

Authority: ☐ AFFARS 5313.501 - 10 U.S.C. 3572, Implementation of Simplified Acquisition Procedures (41 U.S.C. 1901)

☐ AFFARS 5313.501 - 10 U.S.C. 3403, Special Emergency Procurement Authority (41 U.S.C. 1903)

Estimated Contract Cost (including options): \$268,680.00

Justification Type: ☐ Class ☒ Individual

COORDINATION ([AFFARS 5306.304\(a\)](#))[Sign and Save Procedure](#)

** The text in the signature blocks below is editable, including the title.

** To remove a row, click the "X" next to the signature block. **CAUTION:** Once removed, it can only be restored by downloading the [BLANK FORM](#) again.

[APPROVAL \(AFFARS 5306.304\(a\)\)](#)

Date	ERIK W, OWENS, Contracting Officer	Signature
11 Apr 2025	AFTC/PZIOA, 850.882.0257 erik.owens.8@us.af.mil	

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I. Contracting Activity.

AFMC AFTC/PZIOA

II. Nature and/or description of the action being processed.

Service contract for maintenance and repair of the SEM NX9000.

III. Description of supplies/services required to meet agency needs.

The contractor shall provide all, parts, tools, supplies, equipment, and labor necessary to maintain and repair the NX9000 at Eglin AFB. The contractor must respond to any breakdowns that occur through normal use within 2 business days at no cost to the government. The contractor will conduct preventative maintenance inspections at least once a year and ensure the equipment is operating within specifications. The contractor will install software updates as they become available.

IV. Statutory authority permitting other than full and open competition.

In accordance with FAR 13.501, only one responsible source and no other supplies or service will satisfy agency requirements.

V. Demonstration that the contractor's unique qualifications or nature of the acquisition requires the use of the authority cited above (applicability of authority).

The NX9000 must be maintained to the manufacture's specifications in order to certify the reporting of analytical results. Hitachi High Technologies America, Inc (HHTA) built the NX9000 system. HHTA is the only known company to work on this machine and has the intellectual property necessary to repair and/or maintain the equipment. HHTA is the only known supplier of OEM spare parts and consumables needed repair and maintain the NX9000.

VI. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable.

The NX9000 is a very unique X-ray machine. There are very few systems similar to the NX-9000 in the U.S. and all are used by research institutions. Because of proprietary software and parts, Hitachi High Tech America is the only company able to service and maintain the NX9000. A Sources Sought notice posted on 4 March 2025 identified no interested parties capable of meeting the need. Additionally, 3 small businesses were contacted and confirmed they could not fulfill the requirement.

VII. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

Use of IGE and market research pricing will be used to compare the proposed pricing and determined to be fair and reasonable.

VIII. Description of the market research conducted and the results, or a statement of the reasons market research was not conducted.

A Google search was used to determine if there were companies that repaired SEM equipment. From this google search, individual companies were contacted to determine if they have the capability to repair the NX9000. Operators of the NX9000 machines were contacted to find possible service providers. A Sources Sought notice posted on 4 March 2025 identified no interested parties capable of meeting the need. Additionally, 3 small businesses were contacted and confirmed they could not fulfill the requirement. Hitachi High Tech America was the only company identified as having the ability to service and maintain the NX9000.

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IX. Any other facts supporting the use of Other Than Full and Open Competition.

Hitachi High Tech America was the only company to provide a quote for servicing and maintaining the NX9000.

X. List of any sources that expressed, in writing, an interest in the acquisition.

Hitachi High Tech America

XI. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before making subsequent acquisitions for the supplies or services required.

The government continually reviews the market to determine if new vendors or technologies are more cost effective than the existing software or vendor. Any time a potential vendor or technology that provides an improved capability or reduced cost is identified, the government will evaluate it.

XII. Certification by the Contracting Officer.

As evidenced by my signature above, I have determined this document to be both accurate and complete to the best of my knowledge and belief.

XIII. Certification by the technical/requirements personnel.

As evidenced by my (our) signature(s) above, I (we) certify that any supporting data contained herein, which is my (our) responsibility, is both accurate and complete.

☒ Remove the Guidance pages below.